

Court No. - 21

Case :- WRIT - C No. - 13600 of 2022

Petitioner :- Bashir Ahmed

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Abhay Kumar Singh, Tabish
Mohammad

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

Counsel for the petitioner seeks time to file supplementary affidavit as according to him Annexure No.6 filed along with the petition has been wrongly filed.

As prayed, put up as fresh on **13.07.2022**.

Order Date :- 2.6.2022

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(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)

Court No. - 3

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Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Mukesh Kumar Singh, learned counsel for the respondent No.2.

This writ petition has been filed praying for the following relief:

"(a) Issue a writ order in the nature of certiorari quashing the impugned decision dated 10.02.2022 annexed as Annexure no. 9 taken by the committee by which the assessment has been done and demand is being raised as well as the entire actions taken by the respondent no.2 against the petitioner.

(b) Issue a writ of mandamus directing the respondent no. 2 to withdraw all the actions with regard to allegation of theft of electricity U/s. 135 of Electricity Act taken against petitioner; in absence of any cogent reliable material against the petitioner."

Sri Mukesh Kumar Singh, learned counsel for the respondent No.2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 13.7.2022

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